

complaint that the driver, while intoxicated, ran a stop sign, zigzagged in and out of traffic at speeds in excess of 65 mph in a 35 mph zone, all with reckless disregard of the probable consequences of said conduct and with reckless disregard of the safety of others. The *Dawes* court found these facts sufficient to establish the defendant's conscious disregard of the safety of others and that the probability of injury to others could reasonably be inferred. The court reasoned that such allegations, since at least 1974, were sufficient to be interpreted as malice under Civil Code section 3294. (*Id.* at pp. 87-88.)

Thus, it is not always the case that driving while intoxicated will support punitive damages. However, such may be a factor to consider in determining whether sufficient facts are alleged. *Taylor* recognized a shift in the court's view that there exists a commonly understood risk of driving while intoxicated. Here, the allegations are not simply that Defendant drove while intoxicated but that he consumed alcohol to the point of intoxication, "knowing full well from the outset that he must thereafter drive a motor vehicle." (Compl., Attch. 1, ¶4.) As stated in *Taylor*, "one who voluntarily commences, and thereafter continues, to consume alcoholic beverages to the point of intoxication, knowing from the outset that he must thereafter operate a motor vehicle demonstrates, in the words of Dean Prosser, 'such a conscious and deliberate disregard of the interests of others that his conduct may be called wilful or wanton.' [Citation.]" (*Taylor, supra*, 24 Cal.3d at p. 899.) In this light, the Court would deny the motion.

17. *Tembrina v. Williams Furnace Co., et al*, Case No. CIVSB2127440
Motion for Preliminary Approval of Class Action Settlement
8/21/26, 1:30 p.m., Dept. S-17

This matter was continued from its original hearing date on June 12, 2026

Tentative Ruling

The Court would **GRANT**.

Preliminary Approval of Class Action Settlements in General

Settlement of a class action requires court approval. (Cal. Rules of Court, rule 3.769.) The moving party must demonstrate that "the settlement is fair, adequate and reasonable." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 126; *Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 337.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors the court may consider include "the strength of the plaintiffs' case, the risk, the expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors "is not exhaustive and should be tailored to each case." (*Ibid.*) The court may "engage in balancing and weighing of factors depending on the circumstances of each case." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245, overruled on other grounds in *Hernandez v. Restoration Hardware* (2018) 4 Cal.5th 260, 269.)

"Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement." (*Wershba*,

supra, 91 Cal.App.4th at p.245 [quoting *Dunk, supra*, 48 Cal.App.4th at p. 1801].) “The court must therefore scrutinize the proposed settlement agreement to the extent necessary to “reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.” (*Ibid.* [quoting *Officers for Justice v. Civil Service Com’n* (9th Cir. 1982) 688 F.2d 615, 625].)

Nevertheless, the settlement is entitled to a “presumption of fairness . . . where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Kullar, supra*, 168 Cal.App.4th at p. 128, quoting *Dunk, supra*, 48 Cal.App.4th at p. 1802.)

Provisional Class Certification at Preliminary Approval

Although a lesser standard can be used to provisionally certify a settlement class, the court still needs to review and consider each element for certification. (*Global Minerals & Metals Corp. v. Superior Court* (2003) 113 Cal.App.4th 836, 859.) But, as settlement eliminates the need for trial, “the case management issues inherent in ascertainable class determination need not be confronted.” (*Ibid.*)

A class should be certified when “the question is one of a common or general interest, of many persons, or when parties are numerous and it is impracticable to bring them all before court.” (Code Civ. Proc., § 382.) There must be both an ascertainable class and a well-defined community of interest, which includes predominate questions of law or fact, class representatives with claims typical of the class, and class representatives who can adequately represent the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

Settlement Notice

“If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.” (Rules of Court, rule 3.769(f); *Wershba v. Apple Computer, Inc., supra*, 91 Cal.App.4th at p. 251.)

“The purpose of the class notice in the context of a settlement is to give class members sufficient information to decide whether they should accept the benefits offered, opt out and pursue their own remedies, or object to the settlement. As a general rule, class notice must strike a balance between thoroughness and the need to avoid unduly complicating the content of the notice and confusing class members. Here, again, the trial court has broad discretion. (*Wershba, supra*, 91 Cal.App.4th at p. 252.)

The manner of notice shall be by means reasonably calculated to apprise the class members of the settlement. (Rules of Court, rule 3.766(f).) The standard is “whether the notice has ‘a reasonable chance of reaching a substantial percentage of the class members.’” (*Wershba, supra*, 91 Cal.App.4th at p. 251.) The court must consider the interest of the class, type of relief obtained, the state of the individual class members, the costs of notifying the class members, the resources of the parties, the possible prejudice to the class members who do not receive notice, and the *res judicata* effect on the class members. (Rules of Court, rule 3.766(e).)

The Proposed Settlement

Here, this instant case (CIVSB2127440) was filed by Plaintiff Tembrina originally as a wage-and-hour class action on September 14, 2021. On July 8, 2021, Tembrina submitted a written notice to the Labor and Workforce Development Agency (LWDA) to assert wage-and-hour violations in furtherance of a potential representative Private Attorneys General Act (PAGA) cause of action. On January 24, 2023, Plaintiff Rosales filed a similar case (CIVSB2302986) against Defendant, asserting a wage-and-hour class action. Plaintiff Rosales submitted her a LWDA notice letter on May 2, 2022.

On April 20, 2026, Plaintiff Tembrina filed a First Amended Complaint (FAC) in her case in order to fold Plaintiff Rosales into the matter and allege class violations relating to (1) overtime wages; (2) meal periods; (3) rest breaks; (4) minimum wages; (5) final pay; (6) wage timeliness; (7) wage statement accuracy; (8) payroll records; and (9) reimbursements; as well as causes for (10) violation of the unfair competition law (UCL) and (11) civil penalties pursuant to PAGA. Notably the UCL and PAGA claims are underpinned by the alleged wage-and-hour violations.

During the litigation, Plaintiffs sought and received extensive discovery. (Matasovian Decl., ¶13; Settlement, ¶2.6.) They also received substantial payroll and time records, as well as handbook and policy documents. (*Ibid.*) Thereafter, on January 6, 2023, the parties engaged in a full-day, arms-length mediation with Hon. Lesley Green (Ret.), an experienced neutral. (Settlement, ¶2.5.) The parties later held a second session mediation on April 29, 2024, with Hon. Amy D. Hogue (Ret.). (*Ibid.*) After a couple mediator's proposals, the parties reached a settlement in the abstract. The long form settlement agreement was executed in March of 2026. (Khalili Decl., Exh. 2 [Settlement].) Notice of the settlement was given to the LWDA on March 24, 2026. (Khalili Decl., ¶¶16, 44 & Exh. 3.)

There are an estimated 287 class members and 268 PAGA aggrieved employees. (Settlement, ¶4.1.) For purposes of settlement, the class period will reach from January 24, 2019, through July 22, 2024. The PAGA period is from January 12, 2020, through July 22, 2024.

The settlement is proposed on the following terms: Defendants will pay a gross, non-reversionary settlement amount of \$1,400,000.00, from which will be deducted (1) up to \$490,000.00 for Class Counsel's attorneys' fees (35%¹ of gross); (2) costs not to exceed \$23,000.00;² (3) Plaintiffs' enhancement fees of no more than \$30,000.00 total (or \$15,000 each); (4) claims administration fees not to exceed \$10,000.00; and (5) PAGA penalties of \$115,000.00 (of which \$86,750, or 75%, will go to the LWDA and \$28,750, or 25%, will go to the aggrieved employees).

The parties estimate this will leave a wage-and-hour only net settlement amount of a non-reversionary \$732,000.00. This amount would be split by the class of approximately 287 current and former

¹ The Court is usually not inclined to grant 35% in attorneys' fees unless there is some sort of unusual complexity or risk that would warrant such an upward deviation. On motion for final approval, Counsel will provide further analysis of that complexity or risk that counsel believes warrants this upward departure.

² Prior to any final approval, Counsel will provide a break-down of costs at the motion for final approval. Notably, any attorney bills submitted in the guise of services of an expert will require explanation and clarification as to why such bills are not properly considered attorneys' fees. Expert fees will identify the expert utilized. Further, this cap for costs appears much higher than usual. Counsel will be sure to provide a complete breakdown of costs with its motion for final approval.

employees in proportionate shares determined by number of workweeks within the Settlement Class Period. The average per class member would be \$2,550.52. Ninety percent (90%) of paid funds will be representative of penalties and interest, and the remaining ten percent (10%) are representative of wages. (Settlement, ¶3.2.4.1.)

Presuming 268 PAGA aggrieved employees, the average PAGA payout would be \$107.28.

The amount of the settlement is appropriate given the strength of the case, especially in light of Counsel's estimated potential liability exposure. (Khalili Decl., ¶¶18-19.) However, the lower actual settlement appears fair and reasonable in light of certification issues and when calculated to include analysis of various potential defenses as well as the potential appeal of any judgment should Plaintiffs be successful in this venue.

Given the presumption of fairness, the Court would find the figure sufficient to satisfy the *Kullar* requirement. Further, adequate discovery and investigation has occurred. There is no evidence of fraud or collusion. Class Counsel are well qualified to represent the class. The settlement was reached through an arms-length negotiation with the assistance of an experienced and well-respected mediator. The deductions from the gross settlement fund (attorneys' fees,³ costs,⁴ administration fee, incentive award, PAGA penalties, and taxes) appear to be reasonable and appropriate and are, therefore, *preliminarily* approved in the "not to exceed" amounts in the motion. The proposed notice is, also, adequate.

Counsel and the representative are appointed conditionally to represent the class. The motion is *granted*. The court will schedule a hearing to consider final approval at the closest available date to the date recommended by counsel.

The Court preliminarily approves the settlement and (1) Matern Law Group, PC, and Lawyers for Justice, PC, as Settlement Class Counsel; (2) appoints Yolanda Tembrina and Mac Rosales as Class Representatives; (3) approves Apex Group, Inc. as Settlement Administrator; (4) preliminarily finds the settlement fair, reasonable, and adequate; and (5) approves the form and content of the proposed Class Notice and directs the mailing of the same.

At final approval, counsel must advise the court of any pending cases that will be affected by approval of the settlement. Again, prior to final approval, **Counsel must provide the exact number of class members and workweeks for the class settlement and the exact number of PAGA aggrieved employees and pay periods for the PAGA settlement.**

³ Counsel must provide a full lodestar analysis in the motion for final approval.

⁴ Costs must be documented. The court does not award costs for LEXIS or Westlaw usage (which are considered items of overhead), faxes (also overhead), or photocopying in excess of \$0.06 per page.